

Case ref: CASE-20231101 and CASE-20233846
Doc ref: CD/23/132002

30 October 2023

Richard William McLean
Via email: richarddrawsstuff@gmail.com

Dear Richard William McLean

Your complaint about Victoria Police, Western Health and various other unspecified agencies

I refer to your complaint, received on 20 February and 13 June 2023.

Please accept my sincere apologies for time it has taken to assess and write to you in relation to your complaint. IBAC acknowledges that the matters you have complained about have caused you distress.

IBAC's decision about your complaint

IBAC takes the time to carefully consider all complaints received to determine whether to investigate a matter further, refer it to another organisation for investigation, or take no further action and dismiss the complaint.

IBAC has decided not to investigate or refer your complaint to another agency for investigation. IBAC reached this decision because there was not enough information to show that Victoria Police, Western Health and other Victorian Public bodies had engaged in police misconduct or corrupt conduct. Section 67 of the *Independent Broad-based Anti-corruption Commission Act 2011* (IBAC Act) enables IBAC to make this decision.

The threshold for an IBAC investigation is very high and includes evidence of serious or systemic corrupt conduct. In some cases, IBAC may refer serious allegations to another agency for investigation. Unfortunately, on this occasion, IBAC has decided that an investigation by it or a referral to another agency is not warranted.

IBAC has also decided to take no further action in relation to other parts of your complaint because it relates to the Australian Public Sector, which does not fall within IBAC's jurisdiction. IBAC's functions and powers are set out in the IBAC Act, which limits IBAC's jurisdiction to Victorian public bodies and officers and Victoria Police. IBAC does not have the power to investigate matters that do not relate to Victorian public officers or bodies, such as interstate or federal public bodies or officers, among others.

We appreciate this might not be the outcome you were seeking. But we can assure you that IBAC takes all complaints received seriously and we value the time and effort you have given to bring these matters to our attention. All information IBAC receives is recorded and helps IBAC to learn of potential corruption risks and help enhance our prevention and education activities.

Assessment under the Public Interest Disclosures Act 2012

IBAC has assessed whether your complaint is a 'public interest disclosure' within the meaning of the Public Interest Disclosures Act 2012 (PID Act).

OFFICIAL

In this instance, IBAC has determined that your complaint is not a public interest disclosure. This means that you will not receive protections under the PID Act.

If you need support

Sometimes making a complaint can be very stressful or difficult. If you are affected by the matters causing you to make this complaint, we encourage you to contact your healthcare provider. Alternatively, you may wish to access one of the support services listed on our website: <https://www.ibac.vic.gov.au/reporting-corruption/what-happens-to-your-complaint/mental-health-support>

Further support

If you've become a victim of crime and believe an organisation you are dealing with has failed to follow the Victims' Charter principles, you may be able to make a complaint to the Victims of Crime Commissioner (VOCC). You can make a complaint by:

- Calling 1800 010 017 or email enquiries@vocc.vic.gov.au

You may also call to discuss your complaint with VOCC and they will help you to submit your complaint or help answer your questions. More about VOCC and how to make a complaint can be found on the VOCC website: <https://www.victimsofcrimecommissioner.vic.gov.au/victims/make-a-complaint>

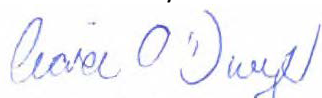
For more information

If you have any queries, please contact IBAC on 1300 735 135 or info@ibac.vic.gov.au

For more information on our complaints process and the support available, go to www.ibac.vic.gov.au/complaintoutcomes

If you want to speak to us in your language, call the Translating and Interpreting Service on 13 14 50 or visit <https://www.ibac.vic.gov.au/general/accessibility/tr>

Yours sincerely



Ciara O'Dwyer

Manager

Assessment & Review